BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION,** and DOES 1 through 10, inclusive, Defendants.	**Case No. 2:26-cv-02881-DAD-SCR** **PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION TO DEFENDANT FEDERAL EXPRESS CORPORATION** Assigned to Hon. Dale A. Drozd Magistrate Judge Sean C. Riordan

Plaintiff's First Set of Requests for Production to Defendant Federal Express Corporation

Pursuant to Federal Rules of Civil Procedure 26 and 34, Plaintiff requests that Defendant Federal Express Corporation produce the following documents and electronically stored information. Production may be made by secure electronic transfer in searchable PDF form, with spreadsheets, databases, audit logs, and structured data produced in reasonably usable native form.

Definitions

These requests use the following definitions solely for discovery:

You, Your, Defendant, or FedEx: Federal Express Corporation and its employees, agents, representatives, departments, databases, and persons acting on its behalf concerning Plaintiff's application or background screening.

Plaintiff: Brendan Ngehsi Newanforbi.

2025 Application: Plaintiff's application completed on or about January 8, 2025, associated with FEDEX GROUND HR, the March 10, 2025 pre-adverse-action notice, and the March 19, 2025 adverse action.

Report: every consumer report, investigative consumer report, background-screening result, component result, source record, attachment, score, adjudication result, notice, and updated version concerning Plaintiff that First Advantage prepared, maintained, or transmitted in connection with the 2025 Application.

Registry Information: information identifying or describing Plaintiff as a sex-offender registrant, or referring to NSOPW, the National Sex Offender Public Website, a national sex-offender-registry search, the California Sex Offender Registry, California's Megan's Law website, Penal Code section 220(a)(1), or registration status.

Prior FedEx Application: every application by Plaintiff before the 2025 Application for employment or engagement with Defendant or a FedEx-affiliated entity whose records are in Defendant's possession, custody, or control.

Document: the broad meaning in Federal Rule of Civil Procedure 34(a), including electronically stored information, native files, email, messaging, database entries, audit logs, metadata, reports, notes, and paper records.

Identify a person: state the person's name, title, employer, role concerning the subject matter, and last known business contact information.

Identify a document: state its date, author, recipients, title or description, custodian, and Bates number if produced.

Instructions

- Respond separately and fully in writing within 30 days after service, subject to any different deadline fixed by rule, stipulation, or court order.

- If you object to any portion, state the specific ground and respond to every unobjectionable portion. Do not withhold responsive material based only on a general objection.

- If information is unavailable after a reasonable inquiry, describe the inquiry and state what information remains unavailable.

- These requests are continuing to the extent required by Federal Rule of Civil Procedure 26(e).

Plaintiff's First Set of Requests for Production to Defendant Federal Express Corporation

REQUEST FOR PRODUCTION NO. 1: Produce the complete 2025 Application in native form and in a readable export, including every question, answer, certification, timestamp, revision, audit field, and attachment.

REQUEST FOR PRODUCTION NO. 2: Produce every Prior FedEx Application and every associated offer, onboarding, hiring, screening, assignment, work, separation, and rehire-eligibility record concerning Plaintiff.

REQUEST FOR PRODUCTION NO. 3: Produce Plaintiff's complete recruiting, applicant-tracking, candidate, personnel, contractor, vendor, and human-resources files maintained by Defendant or FEDEX GROUND HR.

REQUEST FOR PRODUCTION NO. 4: Produce the complete Report exactly as Defendant received or accessed it, including every version, page, component, attachment, source record, warning, disclaimer, score, status, and adjudication result.

REQUEST FOR PRODUCTION NO. 5: Produce all documents reflecting the First Advantage products, packages, searches, databases, adjudication rules, client configurations, and instructions ordered or applied to the 2025 Application.

REQUEST FOR PRODUCTION NO. 6: Produce all source records, raw results, underlying hits, links, screenshots, or data furnished with or accessible through the Report, including records referencing NSOPW, a national registry, the California registry, California's Megan's Law website, Penal Code section 220(a)(1), or registration status.

REQUEST FOR PRODUCTION NO. 7: Produce all communications between Defendant and First Advantage concerning Plaintiff, the 2025 Application, the Report, screening status, adjudication, pre-adverse action, final adverse action, or any dispute or reinvestigation.

REQUEST FOR PRODUCTION NO. 8: Produce all audit logs showing when, how, and by whom the Report or any component result was ordered, received, displayed, accessed, opened, downloaded, transmitted, evaluated, or changed.

REQUEST FOR PRODUCTION NO. 9: Produce all documents identifying or recording every reason code, decision code, score, matrix result, workflow status, recommendation, or explanation associated with Plaintiff's conditional offer or adverse action.

REQUEST FOR PRODUCTION NO. 10: Produce all internal communications, notes, messages, memoranda, tickets, and meeting records concerning Plaintiff's application, background screening, conditional offer, alleged misrepresentation, Registry Information, or adverse action.

REQUEST FOR PRODUCTION NO. 11: Produce every document supporting Defendant's assertion that Plaintiff's application contained one or more material misrepresentations.

REQUEST FOR PRODUCTION NO. 12: Produce every policy, standard, rubric, training material, instruction, or decision rule in effect from January through March 2025 defining a material application misrepresentation or prescribing consequences for one.

REQUEST FOR PRODUCTION NO. 13: Produce all documents showing when Defendant first discovered each alleged misrepresentation and what action Defendant took because of it.

REQUEST FOR PRODUCTION NO. 14: Produce all documents comparing or relating the alleged misrepresentation in the 2025 Application to any answer Plaintiff gave in a Prior FedEx Application.

REQUEST FOR PRODUCTION NO. 15: Produce every policy, guideline, instruction, training material, or compliance communication in effect from January through March 2025 concerning sex-offender-registry information, NSOPW, California's Megan's Law website, Penal Code section 290.46, or the use of registry data in employment decisions.

REQUEST FOR PRODUCTION NO. 16: Produce the background-screening and adjudication policies, matrices, workflows, and client instructions applied to applicants for the position associated with the 2025 Application.

REQUEST FOR PRODUCTION NO. 17: Produce all nonprivileged warnings, notices, compliance materials, or terms supplied by First Advantage to Defendant concerning permissible or prohibited uses of the Report or Registry Information.

REQUEST FOR PRODUCTION NO. 18: Produce the job posting, job description, essential functions, location, shift, pay rate, expected hours, benefits, anticipated start date, and reporting structure for the position associated with the 2025 Application.

REQUEST FOR PRODUCTION NO. 19: Produce every document supporting Defendant's contention that denying Plaintiff the position protected a person at risk, including any document identifying the person, class of persons, or particular risk.

REQUEST FOR PRODUCTION NO. 20: Produce every document identifying a federal, state, or local law that Defendant contends required or authorized obtaining or using Registry Information for the position.

REQUEST FOR PRODUCTION NO. 21: Produce every pre-adverse-action and adverse-action notice concerning Plaintiff, together with all enclosures, report copies, rights summaries, transmission records, delivery logs, portal-access logs, and expiration records.

REQUEST FOR PRODUCTION NO. 22: Produce every disclosure, authorization, consent, request-for-copy record, and copy of an investigative consumer report provided or made available to Plaintiff in connection with the 2025 Application.

REQUEST FOR PRODUCTION NO. 23: Produce all documents concerning any open position or replacement hire for the position Plaintiff sought, including the date filled, pay rate, expected hours, and duration of employment, with personal identifiers of any nonparty applicant redacted.

REQUEST FOR PRODUCTION NO. 24: Produce all nonprivileged documents supporting any affirmative defense that Defendant presently contends bars or reduces Plaintiff's recovery.

REQUEST FOR PRODUCTION NO. 25: Produce any insurance policy or agreement under which an insurer may be liable to satisfy or reimburse all or part of a judgment in this action, subject to Federal Rule of Civil Procedure 26(a)(1)(A)(iv).

Dated: September 25, 2026

/s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per

Certificate of Service

I declare that on September 25, 2026, I served a true copy of **Plaintiff's First Set of Requests for Production to Defendant Federal Express Corporation** on counsel for Defendant Federal Express Corporation as indicated below:

Allison A. Kray, Senior Attorney
Federal Express Corporation Legal Department
2601 Main Street, Suite 1100
Irvine, California 92614
allison.kray@fedex.com

[ ] By email, pursuant to the parties' written agreement to electronic service.
[ ] By first-class United States mail, postage fully prepaid.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct. Executed on September 25, 2026, at _____, California.

_____
BRENDAN NGEHSI NEWANFORBI